

Here, Rosina has established that Plaintiff (Daryl) engaged in misconduct including destruction of the patio cover, roof damage, and trash dumping on the property that was the subject of the settlement agreement and subsequently entered Judgment. (Dec. Rosina Payan ¶¶ 7-16, Exs. “1” – “5”.) Daryl is seeking to enforce Rosina’s obligation to pay him \$20,000 for property that he severely damaged or destroyed *after* he was ordered to transfer it. (*Id.* ¶¶ 16-18, 20.) Notably, Daryl has not filed a reply nor presented any evidence contradicting Rosina’s declaration of events or providing an explanation of any kind. Thus, Rosina has established Daryl brought this motion with unclean hands and should not benefit from his misconduct. Based on the foregoing, the motion to enforce the Judgment is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2301435	SAVIN ENTERPRISES, INC VS CRANE DEVELOPMENT CORPORATION	MOTION TO ENFORCE STIPULATION AND ORDER TO PROCEED WITH ARBITRATION; REQUEST FOR SANCTIONS; AND ALTERNATIVE MOTION TO DISMISS FOR FAILURE TO PROSECUTE

Tentative Ruling:

Savin Enterprises, Inc. (“Savin”) entered into a written contract with Crane Development Corporation (“Crane”). Under the agreement, Plaintiff was to supply labor and materials for the application of lath and plaster to a construction project. Plaintiff alleges that it is owed \$1,233,711 under this agreement.

The complaint asserts the following causes of action: (1) breach of contract, and (2) foreclosure on mechanics lien. This lawsuit is also asserted against Stalder Plaza, LP, who appears to have an interest in the property where the project was built.

Crane has filed a cross-complaint against Savin. Crane alleges that Savin caused delays to the project, which resulted in damages. Crane asserts that it had to hire another subcontractor to finish Crane’s work, which caused it additional expenses. The cross-complaint asserts the following causes of action: (1) breach of written contract, (2) fraud or deceit – intentional misrepresentation, (3) fraud or deceit – concealment, and (4) declaratory relief.

A stipulation and order was entered on 9/19/23, which required this matter to proceed in arbitration.

Crane brings this motion. It contends that Savin has refused to execute an arbitration agreement with Judicate West. It seeks a court order compelling Savin to comply with the stipulation and order entered on 9/19/23. It asks for sanctions in the amount of \$6,888.00 under CCP § 128.5. In the alternative, it asks that the court dismiss Savin’s lawsuit.

In opposition, Savin states that after substituting out is prior counsel, new counsel has arranged for the participation in binding arbitration before Judicate West and has executed the arbitration agreement with Judicate West. It asserts that the arbitration is assigned to Hon. Bryan F. Foster (Ret) and the parties are in the process of scheduling arbitration.

As of 6/24/26, no reply could be located on eCourt.

Analysis:

Based on the opposition, it appears that the motion is moot as to the request to enforce the 9/19/23 stipulation and order. It appears that the Judicate West arbitration agreement has been signed, an arbitrator has been selected, and the parties are awaiting a date for arbitration.

Crane also asks for nearly \$7,000 in sanctions under CCP § 128.5 for Savin's failure to execute the arbitration agreement with Judicate West. However, sanctions sought under CCP § 128.5 must be brought in a separate motion. (CCP § 128.5(f)(1).) They cannot be sought with other relief. (*Id.*) Additionally, under CCP § 128.5, the moving party is required to participate in a safe harbor period before filing a motion under this code section. (*Id.* at (f)(B).) There is no evidence that this requirement has been met. Due to these issues, the request for sanctions is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2302814	PORTERO COMMERCIAL LLC V. SOUTHLAND EQUITIES	HEARING ON EQUITABLE ISSUES TAKEN UNDER SUBMISSION

Tentative Ruling:

Briefing is submitted and matter is scheduled for oral argument on July 16, 2026 at 8:30 am.